

DATE OF COUNCIL MEETING: February 10, 2014

SPONSORS: (ORDINANCE OR RESOLUTION) Dicky Shanor

(1% Sales Tax Funding/Years) N/A

CONTACT PERSON: Brett Walker PHONE: 637-6305 DEPT: Bldg/Development

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	☐	☐	☒
Were Bids called for?	☐	☐	☒
Affected parties notified of Council procedure and dates?	☒	☐	☐
Has bond, insurance or other security been arranged?	☐	☐	☒
Have legal descriptions been checked?	☒	☐	☐

Risk Mgr (☐) City Attorney (☐) Dept. Head (☒)

=====

Submitted by: Brandon Cammarata Title: Director Date: February 5, 2014

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

Engineering Tech Branch City Clerk's Office

Development Office

STAFF REPORT

South 79' of Lot 8, Block 311

Zone District Map Amendment Process

CASE NUMBER(s): UDC-13-00546

FILE CODE: 311-Z

PREPARED BY: Brett Walker

MEETING February 3, 2014 – Planning Commission

DATES: February 10, 2014 – City Council (referral to Public Service Committee)

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Complete Application
- Zone Change Exhibit Map

RECOMMENDATION: The Planning and Development Office recommends approval of the zone change request from **CB Community Business** to **MUR Mixed-Use Residential Emphasis** pursuant to criteria outlined in Section 2.2.1.d of the Cheyenne UDC.

STAFF REPORT UPDATE (2/4/2014): At its regular meeting on Monday, February 3, 2014, the City of Cheyenne Planning Commission recommended approval of the above described Zone Change by a unanimous vote of 6 to 0. The recommendation was made pursuant to the criteria outlined in Section 2.2.1.d of the UDC.

STAFF REPORT

South 79' of Lot 8, Block 311

Zone District Map Amendment Process

CASE NUMBER(s): UDC-13-00546

FILE CODE: 311-Z

PREPARED BY: Brett Walker

MEETING February 3, 2014 – Planning Commission

DATES: February 10, 2014 – City Council (referral to Public Service Committee)

OWNER: Richard Runyan
5401 Murray Hill Drive
Cheyenne, WY 82009

AGENT: Rob Shank
TD Real Estate, LLC
311 W. Lincolnway
Cheyenne, WY 82001

PROJECT NAME: Clayton Long Zone Change

WORK DESCRIPTION: Rezoning to allow for residential use of a house structure.

LOCATION:

1. Legal Description: South 79' of Lot 8, Block 311, Original City, Cheyenne, WY
2. Location: Northwest corner of the intersection of E. 18th St. and Logan Ave.
3. Address: 1620 E. 18th Street

SIZE: Total Area: 5,214 square feet (0.12 acres)

CURRENT ZONING: CB – Community Business

PROPOSED ZONING: MUR – Mixed-Use Residential Emphasis

EXISTING LAND USE: Office (vacant) in residential structure

PROPOSED LAND USE: Residential

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Auto Service Station	CB	City
South	Residential	CB	City
East	Office & Retail	CB	City
West	Residential	CB	City

EXECUTIVE SUMMARY:

This Zone Change request from **CB Community Business** to **MUR Mixed Use Residential Emphasis** has been submitted in order to re-establish residential use of the property. The subject property contains a house built in the 1950s, which was converted to an office use at some point in the past. The potential buyer of the property is interested in using the house as a residence, which is not permitted in the CB district.

When this area was originally zoned, mixed-use zoning districts did not exist in Cheyenne. Therefore, it was necessary to pick either commercial or residential zoning for this area. It was zoned B-2, General Business, which was changed to CB Commercial Business in 1988.

MUR zoning allows residential uses but not the more intense commercial uses allowed in the CB district, and appears to meet the criteria of UDC Sec. 2.2.1.d. Therefore, staff supports the proposed zone change.



ZONE CHANGE DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following criteria:

PLANCHEYENNE. *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

The proposed rezoning would further PlanCheyenne Policy 2.1.a, which “aims to foster stabilization and enhancement of the city’s established and older core neighborhoods.” Maintaining the residences on the subject property also is in line with Principle 2.5: “The Cheyenne area will continue to have affordable “workforce” housing throughout our community.”

SURROUNDING AREA. *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

The area is a mix of residences and businesses, with many of the buildings having been constructed in the 1950s, according to County Assessor records.

There is a house on the adjacent to the property to west owned by the current owner of the subject property and across the alley to the north is a house owned by the gas station owner at the corner. Across 18th Street to the south is a single-family house.

ZONING, BASIC STANDARDS & USES. *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district;*

As mentioned previously, the subject property contains a 1950s house, which is more suitable to mixed-use or residential zoning than commercial zoning. The property's location on Logan, a busy collector roadway, is undoubtedly what led to its original commercial zoning; however, the parcel is only 5,214 square feet, which is likely too small for commercial redevelopment potential. Most of the parcels in the vicinity are too small for commercial redevelopment. In order to redevelop as commercial, several parcels would have to be consolidated into one ownership and one parcel.

Allowed residential uses in the MUB and MUR zones are identical, allowing for detached, semi-attached, attached, multi-dwelling buildings, as well as live/work and mixed-use buildings. The CB district, on the other hand, does not allow any residential uses. CB zoning is more appropriate for larger lots that can accommodate the greater setback and parking requirements.

STREETS & OPEN SPACE. *The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning;*

Overall, the Transportation Network is well established in this area. The area is laid out in the Original City grid pattern and provides good connectivity for a variety of transportation alternatives. Logan Avenue is a two-lane collector road with a center turn-lane. East of Logan the grid transitions to the north-south alignment rather than the offset, northwest-southeast alignment of the Original City. There is a bus stop at the corner of the property on Logan Avenue and an alley along the north property line.

Since the neighborhood is already developed this criterion is less applicable to this proposal than others. The well connected street network already in place supports the mixed-use zoning.

ZONING, INTENT, APPLICABILITY & DESIGN OBJECTIVES. *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

The existing residential use conforms to the intent and applicability of the proposed MUR zone, and design standards are in place to assure compatibility with the surrounding neighborhood.

The Community Business district is not an appropriate zone district for the residences and business that are along this corridor. Inappropriate zoning can stifle investment in these situations. Hence this applicant has asked for a more appropriate designation to provide more certainty for future investment. In the absence of a comprehensive look at the zoning along this corridor individual landowners are forced to pursue changes in zoning incrementally.

ZONING, FUTURE DEVELOPMENT. *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

If the zone change is not approved, the property could continue to be used as office space, though parking is limited on-site. Other possible options might include a daycare with additional fencing and a drop-off lane. If the house were demolished and a new structure built, possible new uses might include a small veterinary kennel/clinic, medical office/clinic, or a small specialty retail store. Again, the size of the property greatly restricts these possibilities, but they are allowed under the current CB zoning.



REVIEWING AGENCY AND REVIEWERS COMMENTS: None

AGENCIES AND REVIEWERS RESPONDING WITHOUT COMMENTS: Urban Planning, Traffic Engineering, Engineering-General, Engineering Tech/GIS, Building

AGENCIES AND REVIEWERS NOT RESPONDING: None

OTHER COMMENTS RECEIVED: None

Encl: Zone Change Exhibit Map (agent submittal)
Aerial Map (staff-produced)

cc: Owner
Agent/Applicant
File

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE PURSUANT TO SECTION 2.2.1, ZONING MAP AMENDMENTS, SECTION 5.1.2, ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3, OFFICIAL ZONING MAP, OF THE CHEYENNE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS TO MUR MIXED-USE RESIDENTIAL EMPHASIS FOR THE SOUTH 79 FEET OF LOT 8, BLOCK 311, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED AT THE NORTHWEST CORNER OF THE INTERSECTION OF E. 18TH STREET AND LOGAN AVENUE)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner of the property described herein, has applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on February 3, 2014, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as the south 79 feet of Lot 8, Block 311, Original City, Cheyenne, Wyoming, is hereby changed to MUR Mixed-Use Residential Emphasis.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

South 79' of Lot 8, Block 311 - 1620 E. 18th - Clayton Long - Zone Change

Zoning District



Future Land Use Map

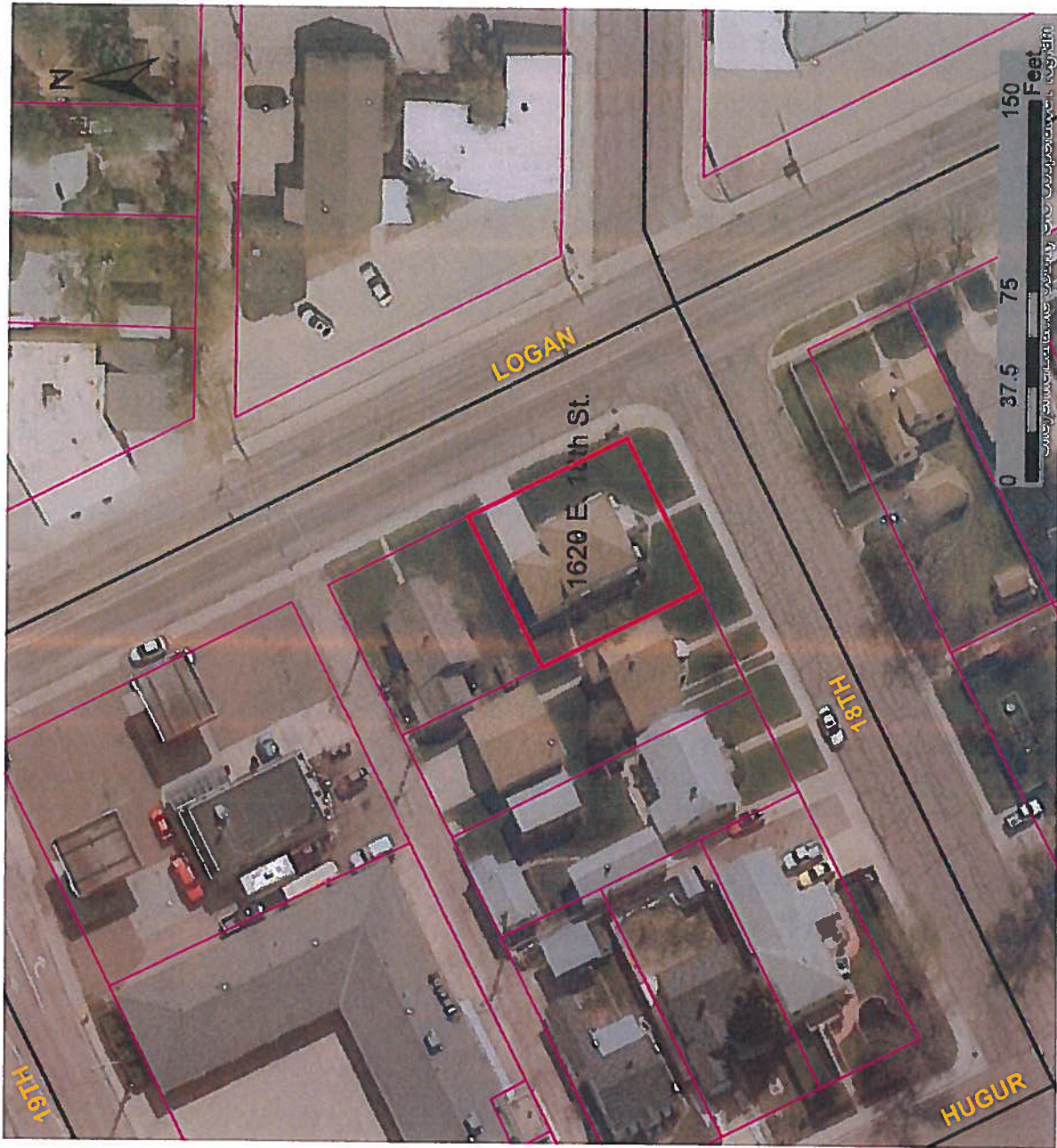


This map is made possible through the Cheyenne and Laramie County Cooperative GIS (LCCGIS) Program and is for display purposes only. The LCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data

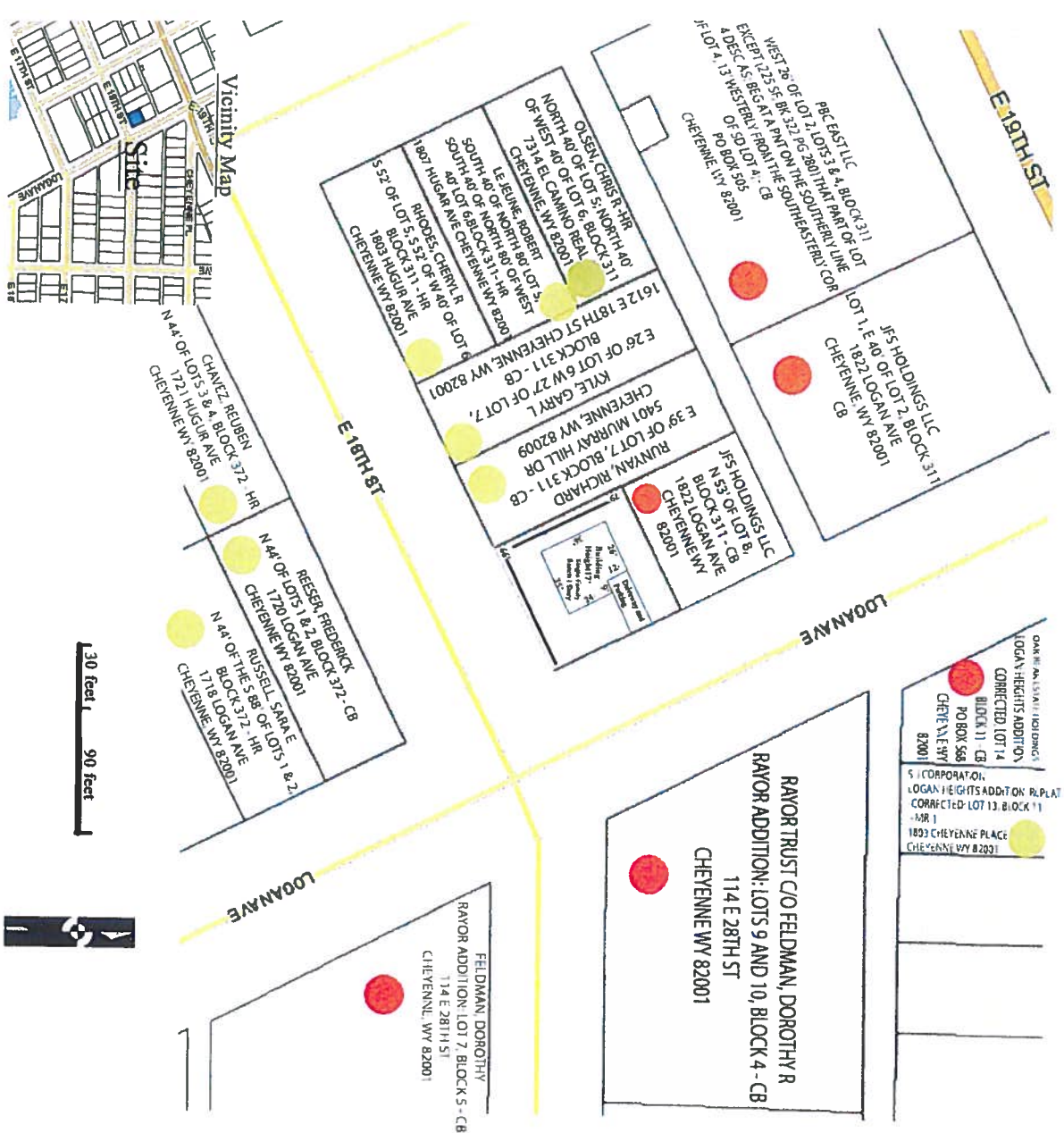
2010 Aerial

UDC-13-00546

Request to change from CB zone to MUR zone



WDC-13-00546



LEGAL DESCRIPTION

1620 East 18th Street
S 79' OF LOT 8 BLOCK 311

City of Cheyenne

Laramie County, Wyoming
Proposed Use: Continued Residential

Zoning

Existing: CB
Proposed: MUR

Note:

Location of the nearest fire hydrant
SE corner of Lot 8 Block 311

Lot Computation Table

Total Site Area: 5214 sq ft
Building Area: 1148 sq ft
Parking Provisions: 3
Estimated Trips per day: TBD

Legend

- Commercial Use
- Residential Use

ZONE CHANGE MAP FOR

1620 East 18th Street
on S 79' Block 311
City of Cheyenne
Laramie County, Wyoming
Prepared 1/6/2014